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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.13296 of 2023

Javed Iqbal versus Data Chemical (Pvt.) Ltd.
Faisalabad

J U D G M E N T

Date of hearing:	13.2.2026
Petitioner by:	Mr. Ali Sufian Faiz, Advocate
Respondent by:	Ch. Muhammad Shafique, Advocate

MALIK MUHAMMAD AWAIS KHALID, J:- By this single judgment, I intend to dispose of the instant civil revision as well as Civil Revision No.9403 of 2023 filed by respondent, as common question of law and facts are involved in the consolidated judgment & decree dated 24.11.2022 passed by learned appellate court whereby the judgment & decree of learned trial court has been upheld. Hereinafter, Javed Iqbal shall be called as ‘**petitioner**’ and Data Chemical (Pvt.) Ltd. shall be called as ‘**respondent**’.

2. Brief facts of the case are that respondent filed a suit for declaration alongwith cancellation of agreement with the contention that the respondent is owner in possession of property, fully described in the headnote of the plaint. In this regard, an agreement to sell dated 16.09.2015 for sale consideration of Rs.1,11,00,000/- per acre, total Rs.1,38,82708/ was entered into between the parties and respondent/ plaintiff received Rs.34,70,000/- as earnest money and remaining amount was to be paid till 16.12.2016. It was averred by the respondent in the plaint that the petitioner Javed Iqbal failed to pay

remaining sale consideration amount within stipulated period i.e. 16.12.2016, therefore, the respondent demanded cancellation of said agreement to sell dated 16.09.2015 and also prayed for forfeiture of earnest money amounting to Rs.34,70,000/-. On the other hand, the petitioner filed suit for possession through specific performance of contract contending therein that the respondent failed to perform its part of agreement, therefore, requisite payment could not be made within the stipulated period. Hence, both the parties to the agreement filed their separate suits wherein the respondent sought rescission of the agreement, whereas the petitioner sought possession of suit property through specific performance of contract. Both parties resisted the suits by filing their contesting written statements wherein they denied the averments of the plaint of each other and prayed for dismissal of the suit of their rival party. After framing of issues, recording of evidence and hearing arguments of the parties, learned trial court, vide impugned judgment and decree dated 31.03.2022, decreed the suit filed by the respondent with direction to return earnest money and cancelled the sale agreement dated 16.09.2015, whereas dismissed the suit of the petitioner for possession through specific performance of contract with the following observation:-

"As the sequel to findings recorded on the supra issues, the suit titled "Data Chemical Vs. Javed Iqbal" is decreed in favour of the vendor/plaintiff and against the vendee/defendant as under.

a. The agreement dated 16.09.2015 is ordered to be rescinded and cancelled.

b. The plaintiff/vendor is bound to return the earnest money of Rs.34,70,000/- (thirty-four lac seventy thousands rupees). The vendor is directed to pay the earnest money of Rs.34,70,000/-(thirty-four lac seventy thousand) within (30) thirty days of passing of this judgment and decree out of court or in the court at his own option

c. The suit titled "Javed Iqbal Vs. Data Chemical & other" is dismissed. However, the vendee is at liberty to withdraw the remaining consideration amount deposited in the government treasury in accordance with rules".

Being dissatisfied with the impugned judgment and decree, both the parties preferred their respective appeals against each other, which were dismissed by the learned appellate court through consolidated judgment and decree dated 24.11.2022. Hence these civil revisions.

3. Arguments have been heard and record perused.
4. Record demonstrates that agreement to sell dated 16.09.2015 was executed between the parties and 16th December, 2016 was fixed for payment of remaining sale consideration. The respondent sought rescission of contract by filing suit for declaration alongwith cancellation of agreement on 08.02.2017 and pleaded for forfeiture of earnest money Rs.34,70,000/- as the petitioner failed to pay remaining sale consideration amount within the stipulated date 16.12.2016. On the other hand, the petitioner sought possession through specific performance of contract by filing his suit on 10.05.2018 contending therein that the respondent failed to perform its obligation. The contention of the petitioner was that he has always

been willing to make payment as per agreement between the parties but it was the respondent who failed to produce copy of *Fard Bai* for completion of agreement.

5. In this case, the agreement to sell was executed on 16.09.2015 and vendor/respondent received Rs.34,70,000/- as earnest money and cut of date for payment of remaining sale consideration was 16.12.2016. The vendee/petitioner filed his suit for specific performance of contract on 10.05.2018, after filing of suit for declaration for cancellation of agreement and forfeiture of earnest money by the respondent i.e. Data Chemical (Pvt.) Ltd. on 08.02.2017 then how can he alleged failure of performance on the part of the vendor/respondent i.e. Data Chemical (Pvt.) Ltd. The vendee/petitioner deposited remaining consideration nearly after five years on 10.02.2022 by filing an application but the same does not absolve him from his obligation showing his readiness. The contention of the learned counsel for the petitioner/defendant that during the pendency of the suit, compromise was effected between the parties and they tendered voucher of payment as Exh. D7 and Rs.10,00,000/- was paid as surplus money, therefore, the limitation period has been extended as the parties with free-will extended and verified the terms of the agreement entered between them, has no force as said document was tendered in the statement of learned counsel for the petitioner/defendant on 26.3.2022, whereas it is settled law that tendering of such document has no value in the eye of law because the same was neither tendered by its author nor the same was tendered through the

statements of witnesses of the said document, hence the said document has no evidentiary value. Reliance is placed on the cases of National Highway Authority, Islamabad through Project Director Zafar Mehmood. vs. Muhammad Afzal Bhatti and another (2024 CLC 1246), Manzoor Ahmad vs. Chiragh Khan (deceased) through L.Rs. (2025 MLD 573), Rustam and others vs. Jehangir (deceased) through L.Rs (2023 SCMR 730) and Mst. Akhtar Sultana vs. Major Retd. Muzaffar Khan Malik through his legal heirs and others (PLD 2021 Supreme Court 715).

6. To avoid making payment of balance sale consideration the vendee could not import or press any condition extraneous to the conscious bargain struck between the parties. In cases arising out of sale of immovable property, a vendee seeking specific performance had to demonstrate his readiness and willingness to perform his part of reciprocal obligation as to payment of balance sale consideration. In the first place, willingness to perform one's contract in respect of purchase of property implied the capacity to pay the requisite sale consideration within the reasonable time. In the second place, even if he had the capacity to pay the sale consideration, the question still remained whether he had the intention to purchase the property. In the present case the plaintiff-vendee failed to offer sale consideration within the agreed period, and even after his suit for specific performance was filed, he made no effort to deposit the balance consideration. Moreover, the law of specific relief was based on the principles of equity and further that the relief of specific performance

was discretionary and could not be claimed as a matter of right, therefore, the Court in order to ensure the bona fide of the vendee at any stage of the proceedings may put him to terms. Reliance is placed on the cases of Mst. Samina Riffat and others vs. Rohail Asghar and others (2021 SCMR 7), Muhammad Asif Awan vs. Dawood Khan and others (2021 SCMR 1270) and Muhammad Aslam and others vs. Muhammad Anwar (2023 SCMR 1371).

7. The findings of learned trial court while dismissing the suit filed by the petitioner titled “Javed Iqbal vs. Data Chemical (Pvt.) Ltd.” and partially decreeing the suit titled “Data Chemical (Pvt.) Ltd. vs. Javed Iqbal” while also cancelling the agreement dated 16.9.2015 with a direction to return the earnest money, has been rightly endorsed by learned appellate court. It is settled law that concurrent findings are not usually interfered with unless the courts below have misread the evidence on record or may have ignored a material piece of evidence on record through perverse appreciation of evidence. This Court has not been able to persuade itself that the concurrent findings by the courts below suffer from any legal infirmity requiring interference by this Court. In this regard, no other substantial question of law has been raised by the learned counsel for the petitioner requiring intervention by this Court. The findings arrived at by the courts below were based on proper appraisal of evidence by attending all the material points and also did not suffer from wrongful or excessive exercise of jurisdiction, thus the impugned judgments and decrees of courts below do not require to be meddled by this Court in exercise of its revisional

jurisdiction, as the same have been passed after thorough scrutiny and appraisal of evidence. The concurrent findings of facts cannot be reversed while exercising revisional jurisdiction unless some apparent misreading, non-reading of evidence has been spotted by the petitioner or flagrant violation of any statutory law has been committed by the courts below. Reliance is placed on the case of Fozia Mazhar vs. Additional District Judge, Jhang and others (PLD 2024 SC 771). No misreading and non-reading of evidence or violation of any settled law has been noticed in the impugned judgments and decrees passed by both the courts below, hence the same are upheld.

8. The crux of above discussion is that both these civil revisions fail, hence the same stand dismissed.

(MALIK MUHAMMAD AWAIS KHALID)
JUDGE

Approved for reporting

JUDGE

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